

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hannah Sampson	Team: Squad #06	CCRB Case #: 201608392	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 09/22/2016 9:00 AM	Location of Incident: 61st Precinct Stationhouse	18 Mo. SOL 3/22/2018	Precinct: 66
Date/Time CV Reported Fri, 09/23/2016 1:38 PM	CV Reported At: Mayor's Office	How CV Reported: E-mail	Date/Time Received at CCRB Mon, 10/03/2016 1:16 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Hongming Peng	18008	949463	061 PCT
2. An officer			061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Melissa Timmins	00987	951336	061 PCT
2. SGT Kaiyuen Leung	01848	929440	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Abuse: An officer strip-searched § 87(2)(b)	A . Officer(s) Unidentified
B . POM Hongming Peng	Abuse: Police Officer Hongming Peng searched § 87(2)(b)'s recording device.	B . Unsubstantiated

Case Summary

§ 87(2)(g)

§ 87(2)(g)

On September 22, 2016, at approximately 4:00 A.M., § 87(2)(b) was on the corner of Avenue N and Ocean Parkway in Brooklyn when he was approached by PO Hongming Peng of the 61st Precinct. § 87(2)(b) was arrested on scene § 87(2)(b). PO Melissa Timmins, also of the 61st Precinct, transported § 87(2)(b) to the 61st Precinct Stationhouse. At the stationhouse, § 87(2)(b) was taken to a locked room where he removed his pants, shirt, socks, and shoes (**Allegation A**). § 87(2)(b) returned to the stationhouse at 9:00 A.M. on September 22, 2016, to gather his belongings. § 87(2)(b) found a photo of PO Peng on his cell phone that had been taken by a security application on the phone. The photo feature on the application was activated when PO Peng entered and searched § 87(2)(b)'s cell phone (**Allegation B**).

There is no video footage for this incident.

Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s arrest, this case was not suitable for mediation.
- As of December 20, 2016, § 87(2)(b) has not filed a Notice of Claim for this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 01].
- PO Peng has been a member of the service for six years and has two prior CCRB allegations against him.

Findings and Recommendations

Explanation of Subject Officer Identification

According to his statement with the CCRB, after being searched at the desk, § 87(2)(b) was taken to a locked back room and strip searched [BR 03]. § 87(2)(b) was required to remove his pants, shirt, socks, and shoes. The search was conducted by a plainclothes officer that was previously behind the desk. § 87(2)(b) described the officer as a white male, approximately six feet tall, with a muscular build, dark hair and eyes, and no facial hair, tattoos, or accent [BR 11]. The officer was dressed in a light shirt and dark, possibly brown, pants.

PO Peng stated that he returned to the 61st Precinct Stationhouse at 5:02 A.M to process § 87(2)(b)'s arrest paperwork [BR 06]. PO Peng estimated that he arrived at the stationhouse approximately five minutes after PO Timmins and § 87(2)(b) § 87(2)(b) was already in a holding cell. PO Peng did not perform any searches of § 87(2)(b) at the stationhouse and did not recall hearing from PO Timmins of any additional searches being conducted on § 87(2)(b) aside from the basic search when his personal belongings were taken and he was checked for sharp objects. PO Peng did not perform a strip search of § 87(2)(b) and did not have any knowledge that a strip search was conducted. While PO Peng was in the stationhouse, no one spoke to him about a strip search or requested that one be conducted. PO Peng did not recall who the desk sergeant was at the time of this incident but stated the desk officer was in uniform. PO Peng did not observe any officers in plainclothes in the stationhouse.

PO Timmins stated that upon arriving to the stationhouse, she brought § 87(2)(b) in front of the desk [BR 07]. At the desk, PO Timmins filled out § 87(2)(b)'s Prisoner Pedigree Card. PO Timmins did not recall who the desk officer was at the time and did not remember observing any officers in plainclothes behind the desk. After filling out § 87(2)(b)'s pedigree card, PO Timmins took § 87(2)(b) to the holding cell. PO Timmins did not know if § 87(2)(b) was ever removed from the holding cell and was not informed by another officer if § 87(2)(b) was removed from the holding cell. PO Timmins did not have any knowledge of § 87(2)(b) being strip searched at any point and did not participate in a strip search of § 87(2)(b). PO Timmins did not observe any other officer search § 87(2)(b). Aside from when § 87(2)(b) was instructed to remove his shoelaces and belt upon entering the holding cell, PO Timmins was not informed of any additional searches conducted on § 87(2)(b). PO Timmins did not conduct that search and did not know which officer did.

Sgt. Leung testified that upon returning to the stationhouse, § 87(2)(b) was searched at the desk by PO Peng before being taken to the holding cell [BR 08]. Sgt. Leung was behind the desk during the search but returned to patrol shortly after transporting § 87(2)(b). During Sgt. Leung's time at the stationhouse, he did not observe an officer in plainclothes near the desk or anywhere else in the stationhouse. Sgt. Leung did not observe § 87(2)(b) be removed from the holding cell at any point. At no point did Sgt. Leung participate in or hear of a strip search being conducted on § 87(2)(b).

According to the Roll Call from the 61st Precinct, thirteen white males were assigned to Tour 1 on September 22, 2016 [BR 09].

There is no notation in the Command Log of a strip search being conducted on § 87(2)(b) [BR 10].

§ 87(2)(g)

Allegation A –Abuse of Authority: An officer strip-searched § 87(2)(b)

As discussed above, § 87(2)(b) stated that after being searched at the desk, he was taken to a locked back room and strip searched by a white male officer in plainclothes who was previously behind the desk.

PO Peng, PO Timmins, and Sgt. Leung denied participating in or having knowledge of a strip search being conducted on § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

In light of the above, it is recommended that **Allegation A** be closed as **officer unidentified**.

Allegation B – Abuse of Authority: Police Officer Hongming Peng searched § 87(2)(b)
§ 87(2)(b)'s recording device.

It is undisputed that PO Peng was in possession of § 87(2)(b)'s device on September 22, 2016, in the 61st Precinct Stationhouse in Brooklyn.

§ 87(2)(b) testified that he returned to the 61st Precinct Stationhouse at approximately 9:00 A.M. or 10:00 A.M. on September 22, 2016, to pick up his belongings. The first thing § 87(2)(b) saw on his phone was a photo of PO Peng [BR 04]. The photo is time stamped as 4:08 A.M. on September 22, 2016 and the text reads “This person tried to snoop on your contacts.” Text in the bottom left corner of the photo reads “CM AppLock.” § 87(2)(b) has a Samsung Galaxy S6 and downloaded a security application that takes a photo of any individual that attempts to enter § 87(2)(b)'s phone but enters an incorrect passcode too many times. The photo is then sent to § 87(2)(b) via email. To enter the phone, the user has to swipe across and then enter a zig-zag pattern. The phone does not require that the user authenticate his or her identity, but the passcode pattern must be entered correctly to gain access. The power button on the phone is located on the side of the phone and no photos can be taken without entering the phone. In a follow-up call, § 87(2)(b) added that at the time of the incident, he had the application programmed to lock access to the entire phone, rather than to individual applications [BR 05]. § 87(2)(b) believed the passcode needed to be entered incorrectly two or three times for the photo feature to be activated. § 87(2)(b) does not have any short cuts to applications in the bottom corners of his lock screen. § 87(2)(b)'s phone locks automatically within one minute and was locked at the time of his arrest. PO Peng did not have a search warrant to search § 87(2)(b)'s phone and § 87(2)(b) did not authorize PO Peng to enter the phone. § 87(2)(b) did not observe PO Peng holding or interacting with his phone at any point during the interaction.

PO Peng stated that he vouchered § 87(2)(b)'s cell phone, headphones, and wallet. PO Peng did not recall what kind of phone § 87(2)(b) possessed. To voucher a cell phone, officers attempt to remove the phone's battery, SIM card, and memory card. Each of those items is then separately vouchered. PO Peng removed the battery, SIM card, and memory card from § 87(2)(b)'s phone and vouchered them. Aside from the removal of those items, PO Peng did not have any further interaction with § 87(2)(b)'s phone. § 87(2)(b)'s phone turned off when PO Peng removed its

battery. PO Peng did not attempt to turn off the phone and did not attempt to open the phone at any point. PO Peng did not know which other officers were in possession of § 87(2)(b)'s phone prior to it being vouchered.

PO Peng was shown the photo from § 87(2)(b)'s phone and identified himself as the individual in the photo. PO Peng did not know what actions he took prior to the photo being taken but stated maybe he tried to “look” at the phone. PO Peng does not use the same kind of phone as § 87(2)(b) and did not know how the phone works or how the photo was taken. PO Peng stated that the photo might have been taken when he was “playing with the phone” because he does not know how the phone works. PO Peng continued that maybe when he was holding the phone he pressed a button that caused the photo to be taken but did not know what he did to cause the photo to be taken. PO Peng stated that he may or may not have pressed buttons on § 87(2)(b)'s phone and did not recall with certainty.

PO Peng described the backdrop of the photo as the desk area in the 61st Precinct Stationhouse. While at the desk, PO Peng was “trying to see what was on the phone” and trying to determine what kind of phone it was. When asked what he meant by trying to see what was on the phone, PO Peng stated that he tried to see what kind of phone it was and that sometimes the phone lights up and he tries to shut it off. PO Peng did not recall if that happened during this incident. When asked if he ever tried to open the phone at any point, PO Peng stated that when he vouchered the phone he removed the battery and the other pieces. Prior to vouchering the phone at 8:20 A.M., the phone was held in a plastic bag until PO Peng was ready to voucher it. The NYPD issued PO Peng a Windows phone but PO Peng did not know the phone’s make or model. PO Peng uses a personal Apple iPhone.

PO Timmins testified that she did not know where she was when PO Peng arrived to the stationhouse and did not know what additional steps he took to continue § 87(2)(b)'s arrest processing. PO Timmins did not remember if PO Peng was ever in possession of § 87(2)(b)'s cell phone.

Sgt. Leung stated that when vouchering a cell phone, it is standard procedure to take the phone apart and voucher each piece separately. In the event that the officer is vouchering a smart phone, he or she will try to turn off the phone and remove the SIM card when applicable. Sgt. Leung did not know if PO Peng took any of those actions while vouchering § 87(2)(b)'s cell phone. Sgt. Leung did not observe PO Peng in possession of § 87(2)(b)'s cell phone at any point during the interaction.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Squad: 6

Investigator:	_____	____Hannah Sampson____	_____
	Signature	Print	Date

Squad Leader:	_____	____Jessica Peña____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date